

2	United Financial Casualty Company v. Annet	Before the Court is a Motion to Pay Judgment in Installments filed by defendant Arianna Annet. As set forth herein, the motion is DENIED. In the instant motion, Ms. Annet seeks an order that she only have to pay \$75/month on the \$84,751.06 judgment entered against her. There is no authority cited for the relief requested. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v. City of Fresno</i> (1984) 151 Cal.App.3d 635) Accordingly, the motion is DENIED. United Financial Casualty Company shall give notice.
3	Shurtleff v. Home Depot USA, Inc.	O/C
4	Self Storage Manager, Inc. v. Tenant, Inc.	Before the Court is a demurrer filed by defendants Tenant, Inc. and Mara Padres (Defendants) on the first amended complaint (FAC) of plaintiff Self Storage Manager, Inc. (Plaintiff). For the reasons set forth below, the demurrer is OVERRULED. <u>1st cause of action (violation of Penal Code § 502)</u>: The California Uniform Trade Secrets Act, Civil Code section 3426 et. seq. (CUTSA) preempts common law claims for misappropriation of trade secrets and statutory claims if they rely on the same facts as the misappropriation claim. (<i>K.C. Multimedia, Inc. v. Bank of America Tech. & Operations, Inc.</i> (2009) 171 Cal.App.4th 939, 954, 958, 961-962.) The first cause of action is based on unauthorized computer access itself and the FAC alleges independent damages unique to computer trespass, and thus does not arise out of the same nucleus of facts as the misappropriation claim. (FAC ¶¶ 15, 19, 20.) The Court finds this claim is not preempted by CUTSA. The demurrer is therefore OVERRULED. Counsel for Defendant shall provide notice of this ruling.
5	Pham v. General Motors, LLC	O/C
6	Jones v. Jaime	O/C
7	Nguyen v. Buffa	The demurrer by defendants Jack Buffa, Cindy Buffa and Karafaye Buffa as to the First Amended Complaint (FAC) filed by Toan Nguyen is SUSTAINED IN PART, AND OVERRULED IN PART, as set forth herein. Initially, the Court notes there is no proof of service attached to the Demurrer or Reply. California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. As to the merits, the role of a demurrer is "to test the legal sufficiency of a complaint." (<i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994, citations omitted.) A demurrer challenges